

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

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NATASHA MCKOY,

Plaintiff,

-against-

THE CITY OF NEW YORK, POLICE OFFICER
CHRISTOPHER FUREGNO, Tax No. 934891, POLICE
OFFICER GEORGE ALLEN, Tax No. 944517,
DETECTIVE JOSEPH FERNANDEZ, Shield No. 1815,
SERGEANT AFZAL ALI, Tax No. 936116, DETECTIVE
TATMENG VONG, Tax No. 951405, and DETECTIVE
JAMES SCHUESSLER, Shield No. 28718, and POLICE
OFFICERS JOHN DOES #1-10 (names and number of
whom are unknown at present),

Defendants.

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SUMMONS

Index No.:

The Basis of Venue is:
Location of Incident

Plaintiff designates Kings
County as the place of trial.

To the above named Defendants:

You are hereby summoned to answer the complaint in this action, and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

DATED: New York, New York
October 27, 2019

Yours, etc.

/s/
JACOBS & HAZAN, LLP.
DAVID M. HAZAN, ESQ.
Attorney for Plaintiff
30 Vesey Street, 4th Floor
New York, New York 10007
(212) 577-2690

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TO: City of New York, Corporation Counsel, 100 Church Street, NY, NY 10007
POLICE OFFICER CHRISTOPHER FUREGNO, Tax No. 934891, 73rd Precinct, 1470
East New York Avenue Brooklyn, NY, 11212
POLICE OFFICER GEORGE ALLEN, Tax No. 944517, 73rd Precinct, 1470 East New
Avenue Brooklyn, NY, 11212
DETECTIVE JOSEPH FERNANDEZ, Shield No. 1815, Narcotics Borough Brooklyn
North, One Police Plaza, Room 1100, New York, NY 10038
SERGEANT AFZAL ALI, Tax No. 936116, Narcotics Borough Brooklyn North, One
Police Plaza, Room 1100, New York, NY 10038
DETECTIVE TATMENG VONG, Tax No. 951405, Narcotics Borough Brooklyn North,
One Police Plaza, Room 1100, New York, NY 10038
DETECTIVE JAMES SCHUESSLER, Shield No. 28718, 73rd Precinct, 1470 East New
York Avenue Brooklyn, NY, 11212

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

----- X

NATASHA MCKOY,

Plaintiff,

-against-

INDEX NO.:

VERIFIED COMPLAINT

THE CITY OF NEW YORK, POLICE OFFICER
CHRISTOPHER FUREGNO, Tax No. 934891, POLICE
OFFICER GEORGE ALLEN, Tax No. 944517,
DETECTIVE JOSEPH FERNANDEZ, Shield No. 1815,
SERGEANT AFZAL ALI, Tax No. 936116, DETECTIVE
TATMENG VONG, Tax No. 951405, and DETECTIVE
JAMES SCHUESSLER, Shield No. 28718, and POLICE
OFFICERS JOHN DOES #1-10 (names and number of
whom are unknown at present),

JURY TRIAL DEMANDED

Defendants.

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Plaintiff NATASHA MCKOY, by his attorneys, Jacobs & Hazan, LLP, as and for his
Verified Complaint herein, alleges upon information and belief as follows:

PRELIMINARY STATEMENT

1. This is a civil rights action to recover money damages arising out of defendants' violation of plaintiff's rights as secured by the Civil Rights Act, 42 U.S.C. Sections 1983 and 1988, and of rights secured by the First, Fourth, Fifth and Fourteenth Amendments to the United States Constitution, and the common law and the laws of the State of New York. Plaintiff alleges that on April 10, 2018 at approximately 6:00 am, plaintiff was lawfully sleeping inside of her apartment located at 89 Christopher Avenue, Apt. 12E, Brooklyn, New York 11212 when the individually named defendant police officers unlawfully entered the apartment screaming profanities and pointing their guns at the heads of everyone in the apartment, including plaintiff. The defendants repeatedly asked everyone in the apartment for William Kleinfeldt, but plaintiff and the other people present did not know who William Kleinfeldt was. Eventually the defendants appeared to conclude that they raided the wrong apartment looking for William Kleinfeldt. Even though William Kleinfeldt was not present in plaintiff's apartment and nobody present in the apartment knew who he was, the defendants unlawfully searched plaintiff's entire apartment. Additionally, plaintiff was taken into her bathroom by defendants and unlawfully strip searched. The defendants did not recover any illegal drugs, weapons or contraband in plaintiff's possession, custody or control pursuant to their search of her apartment and the strip search of plaintiff. However, defendants falsely arrested/ imprisoned plaintiff and

transported her against her will to the 73rd Precinct where plaintiff was unlawfully detained in a filthy holding cell for approximately 5 hours. After approximately 5 hours, plaintiff was issued a criminal court summons falsely charging her with Unlawful Possession of Marijuana (PL 221.05) and she was released from the custody. Plaintiff was required to appear in criminal court on two occasions to address the false charge defendants brought against her, and on July 25, 2018 the Court dismissed and sealed the charge brought against her in its entirety. The Defendants maliciously prosecuted plaintiff and denied plaintiff the right to due process/ right to a fair trial by fabricating allegations against plaintiff on the criminal court summons. Plaintiff was deprived of her constitutional and common law rights when the individual defendants unlawfully raided her apartment, unlawfully questioned, frisked, searched, confined, falsely arrested, maliciously prosecuted, and denied plaintiff the right to a fair trial in violation of the Fourth, Fifth and Fourteenth Amendments to the United States Constitution, the common law and the laws of the State of New York.

PARTIES

2. Plaintiff NATASHA MCKOY is a resident of the state of New York.
3. POLICE OFFICER CHRISTOPHER FUREGNO, Tax No. 934891, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.
4. POLICE OFFICER CHRISTOPHER FUREGNO, Tax No. 934891, was at all times relevant herein, assigned to the 73rd Precinct.
5. POLICE OFFICER CHRISTOPHER FUREGNO, Tax No. 934891, is being sued in his individual and official capacity.
6. POLICE OFFICER GEORGE ALLEN, Tax No. 944517, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.
7. POLICE OFFICER GEORGE ALLEN, Tax No. 944517, is and was at all times relevant herein, assigned to the 73rd Precinct.
8. POLICE OFFICER GEORGE ALLEN, Tax No. 944517, is being sued in his individual and official capacity.
9. DETECTIVE JOSEPH FERNANDEZ, Shield No. 1815, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.
10. DETECTIVE JOSEPH FERNANDEZ, Shield No. 1815, is and was at all times relevant herein, assigned to the Narcotics Borough Brooklyn North Command.
11. DETECTIVE JOSEPH FERNANDEZ, Shield No. 1815, is being sued in his individual and official capacity.

12. SERGEANT AFZAL ALI, Tax No. 936116, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

13. SERGEANT AFZAL ALI, Tax No. 936116, is and was at all times relevant herein, assigned to the Narcotics Borough Brooklyn North Command.

14. SERGEANT AFZAL ALI, Tax No. 936116, is being sued in his individual and official capacity.

15. DETECTIVE TATMENG VONG, Tax No. 951405, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

16. DETECTIVE TATMENG VONG, Tax No. 951405, is and was at all times relevant herein, assigned to the Narcotics Borough Brooklyn North Command.

17. DETECTIVE TATMENG VONG, Tax No. 951405, is being sued in his individual and official capacity.

18. DETECTIVE JAMES SCHUESSLER, Shield No. 28718, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

19. DETECTIVE JAMES SCHUESSLER, Shield No. 28718, is and was at all times relevant herein, assigned to the 73rd Precinct.

20. DETECTIVE JAMES SCHUESSLER, Shield No. 28718, is being sued in his individual and official capacity.

21. New York City Police Officers John Does #1-10 are and were at all times relevant herein officers, employees, and agents of the New York City Police Department.

22. Police Officers John Does #1-10 are being sued in their individual and official capacities.

23. At all times relevant herein, the individual defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees and officers of the New York City Police Department, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the New York City Police Department at all times relevant herein, with the power and authority vested in them as officers, agents and employees of the New York City Police Department and incidental to the lawful pursuit of their duties as officers, employees and agents of the New York City Police Department.

24. Defendant City of New York is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police department, which acts as its agent in the area of law enforcement and for which it is ultimately responsible. The defendant City of New York assumes the risks incidental to the maintenance of

a police force and the employment of police officers as said risks attach to the public consumers of the services provided by the New York City Police Department.

25. Plaintiff in furtherance of his causes of action brought pursuant to New York State law filed a Notice of Claim with the CITY OF NEW YORK, in compliance with the Municipal Law Section 50 and a Hearing was held by the City of New York pursuant to General Municipal Law Section 50-h on August 8, 2018.

26. More than thirty (30) days have elapsed since service of said Notice of Claim was filed and THE CITY OF NEW YORK has failed to pay or adjust the claim.

27. This action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving intentional actions, as well as the defendant, and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

28. Plaintiff has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

STATEMENT OF FACTS

29. By way of background on April 10, 2018 plaintiff was living with her girlfriend Essence Ervin and her 15-year-old son at 89 Christopher Avenue, Apt. 12E, Brooklyn, New York 11212.

30. April 10, 2018 at 6:00 am plaintiff was lawfully sleeping inside of her apartment located at 89 Christopher Avenue, Apt. 12E, Brooklyn, New York 11212, her 18-year-old son was awake and getting dressed to start his day, and her girlfriend was awake and getting ready for work when plaintiff was awoken from her sleep by the individually named defendant police officers when they unlawfully entered the apartment screaming profanities and pointing their guns at the heads of everyone in the apartment, including plaintiff.

31. Upon information and belief, the search warrant obtained by defendants to search plaintiff's apartment was obtained by the defendants improperly and with the use of information and allegations that was fabricated by defendants.

32. Defendants obtained a search warrant to search plaintiff's apartment because they were trying to locate and arrest an individual named William Kleinfeldt and they incorrectly believed he lived in plaintiff's apartment.

33. Upon information and belief, defendants obtained a search warrant to enter and search the wrong apartment.

34. Plaintiff has never met and does not know anyone named William Kleinfeldt.

35. Upon entering plaintiff's apartment, defendants screamed "Where is William Kleinfeldt?"

36. Plaintiff and the other occupants of the apartment had no idea who William Kleinfeld was, as he did not live in that apartment and they did not know anyone with that name.

37. Plaintiff and the other occupants of the apartment repeatedly advised defendants that they had no idea who William Kleinfeldt was.

38. Defendants showed plaintiff a document with William Kleinfeldt's name on it and plaintiff believes that the document shown to her by defendants was an arrest warrant for an individual named William Kleinfeldt.

39. Defendants repeatedly accused plaintiff and the other occupants of the apartment of "covering for William Kleinfeld," but defendants eventually acknowledged that they believed plaintiff and the other individuals in the apartment did not know who William Kleinfeldt was and that defendants must have accidentally obtained a warrant to arrest him at the wrong location.

40. The officers did not have a valid objective factual basis to believe William Kleinfeldt lived in plaintiff's apartment before they obtained an arrest and/or search warrant.

41. Defendants unlawfully raided the wrong apartment on April 10, 2018.

42. Prior to April 10, 2018 plaintiff had never been present in an apartment where police officers were executing a search warrant, and the experience was shocking and extremely emotionally traumatic for her.

43. It was terrifying for plaintiff to be woken from her sleep by multiple men breaking down her apartment door, screaming profanities and pointing their guns at her head and at the heads of plaintiff's son and girlfriend.

44. Plaintiff had absolutely no idea what was going on when defendants entered her apartment and she thought defendants were going to shoot and kill her. The experience caused plaintiff to suffer extreme emotional trauma.

45. Additionally, at the time the officers raided the apartment plaintiff was only wearing underwear.

46. Most of the officers that raided the apartment were male and plaintiff was forced to sit in her underwear in front of the male officers for approximately ten minutes which was extremely embarrassing and emotionally traumatic for plaintiff.

47. After approximately 10 minutes, an officer brought plaintiff into the bathroom and ordered her to remove her underwear so that the officer could conduct a strip search.

48. Plaintiff complied with the officer's orders, but the experience of getting naked in front of the police officer so that the officer could inspect her body was absolutely humiliating for plaintiff and caused plaintiff to suffer additional anxiety and emotional distress.

49. The police officer did not recover any illegal drugs, weapons or contraband from plaintiff pursuant to the strip search and plaintiff was permitted to get dressed after the strip search was completed.

50. Defendants unlawfully searched plaintiff's entire apartment and at no time relevant herein did defendants recover any illegal, drugs, weapons or contraband from plaintiff's possession, custody or control pursuant to defendants' search of plaintiff's person or plaintiff's apartment.

51. Defendants asked plaintiff and the other occupants of the apartment whether there were any drugs or weapons in the apartment.

52. Plaintiff's girlfriend, Essence Ervin, advised defendants that she had a small amount of marijuana for her personal use in her purse that she was holding.

53. She explained to defendants that the small amount of marijuana in her purse belonged to her and that nobody else in the apartment even knew she had it in her purse.

54. The small amount of marijuana recovered from, Ms. Ervin's purse that was held by Ms. Ervin was not recovered from a location that was in the possession custody or control of plaintiff and the defendants did not possess any evidence that suggested plaintiff had any knowledge of the marijuana recovered from Ms. Ervin's purse.

55. At no time relevant herein did plaintiff commit a crime or violate the law in any manner, and defendants did not possess any objective facts that suggested to them that plaintiff committed a crime or violated the law in any manner.

56. At all times relevant herein defendants lacked probable cause to arrest plaintiff.

57. Nevertheless, after plaintiff got dressed, defendants handcuffed and falsely arrested plaintiff, without probable cause to believe she committed a crime.

58. Defendants did not have an objective factual basis to believe plaintiff had possession, custody or control over the small amount of marijuana recovered from Ms. Ervin's purse, nor did defendants have probable cause to believe plaintiff committed any other crime.

59. Nevertheless, defendants informed plaintiff that they were placing her under arrest.

60. Defendants walked plaintiff out of her apartment building in handcuffs and several of her neighbors gathered around to see what was happening.

61. It was extremely embarrassing for plaintiff to have her neighbors witness her being removed from her apartment in handcuffs by police officers and plaintiff's reputation amongst her neighbors was irrevocably damaged as a result of this incident.

62. It is now extremely uncomfortable for plaintiff to socialize with her neighbors and members of her community because plaintiff believes that they now view her as a criminal.

63. Defendants placed plaintiff in an NYPD police vehicle and transported her against her will to the 73rd Precinct whereat she was detained in a filthy holding cell for approximately 5 hours.

64. After approximately 5 hours, plaintiff was issued a criminal court summons, falsely charging her with Unlawful Possession of Marijuana (PL 221.05) and she was released from the precinct.

65. Plaintiff was requited to appear in Kings County Criminal Court to address the false allegations against her on June 27, 2018, and then had to return to court again on July 25, 2018.

66. On July 25, 2018 the Court dismissed and sealed the charge brought against her in its entirety and the criminal case terminated in her favor.

67. Defendants unlawfully searched plaintiff, without probable cause or legal justification to believe plaintiff possessed any illegal drugs, weapons or contraband.

68. Defendants unlawfully handcuffed plaintiff and falsely arrested/imprisoned plaintiff, without probable cause or legal justification

69. At no time relevant herein did plaintiff violate the law or commit a crime, nor did the defendants possess and objective factual basis to believe plaintiff committed a crime or violated the law in any manner.

70. The defendants denied plaintiff the right to due process/ right to a fair trial and initiated a criminal prosecution against plaintiff without probable cause.

71. Those officers that did not physically touch plaintiff but observed their fellow officers violating plaintiff's rights under New York State law and the Constitution, but neglected to intervene to stop their fellow officers from continuing to violate plaintiff's rights under New York State law and the United States Constitution are liable to plaintiff for their failure to intervene.

72. The unlawful entry into plaintiff's apartment, unlawful question, frisk, search, false arrest, false imprisonment, malicious prosecution, and the denial of the right to due process/ right to a fair trial against plaintiff by the individually named defendants caused plaintiff to sustain physical, psychological, economic, and emotional trauma.

FIRST CAUSE OF ACTION

Violation of Plaintiff's Fourth Amendment, Fifth Amendment, and Fourteenth Amendment Rights

73. The plaintiff repeats reiterates and realleges each and every allegation contained in paragraphs marked 1 through 72 with the same force and effect as if more fully set forth at length herein.

74. The individually named police officer defendants while acting in concert and within the scope of their authority, caused plaintiff to have her home entered unlawfully by defendants, caused plaintiff to be unlawfully questioned, frisked, seized, unlawfully searched, unlawfully strip searched, falsely arrested, falsely imprisoned, maliciously prosecuted, and denied the right to a fair trial without probable cause in violation of plaintiff's right to be free of an unreasonable seizure and denial of due process under the Fourth Amendment to the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

SECOND CAUSE OF ACTION

False Arrest and False Imprisonment

75. The plaintiff repeats reiterates and realleges each and every allegation contained in paragraphs marked 1 through 74 with the same force and effect as if more fully set forth at length herein.

76. The acts and conduct of the defendants constitute false arrest and false imprisonment under the laws of the State of New York. Defendants intended to confine plaintiff and, in fact, confined plaintiff, and plaintiff was conscious of the confinement. In addition, plaintiff did not consent to the confinement and the confinement was not otherwise privileged.

77. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York and the United States Constitution.

78. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

79. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

80. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to physical, economic, emotional and psychological injuries.

THIRD CAUSE OF ACTION

Unlawful Question and Frisk

81. The plaintiff repeats reiterates and realleges each and every allegation contained in paragraphs marked 1 through 80 with the same force and effect as if more fully set forth at length herein.

82. The illegal approach, pursuit, stop, questioning and frisk employed by defendants herein terminated plaintiff's freedom of movement through means intentionally applied.

83. The conduct of defendants in frisking and searching, plaintiff were performed under color of law and without any reasonable suspicion of criminality or other constitutionally required grounds.

84. As a direct and proximate result of such acts, defendants deprived plaintiff of her rights under the laws of the State of New York.

85. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

86. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

87. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to physical, economic, emotional and psychological injuries.

FOURTH CAUSE OF ACTION

Unlawful Search

88. The plaintiff repeats reiterates and realleges each and every allegation contained in paragraphs marked 1 through 87 with the same force and effect as if more fully set forth at length herein.

89. The illegal approach, pursuit, stop and search inside plaintiff's pockets, inside of the waistband of her pants and underneath her clothing employed by defendants herein, terminated plaintiff's freedom of movement through means intentionally applied.

90. Defendants lacked probable cause to search plaintiff.

91. As a direct and proximate result of such acts, defendants deprived plaintiff of her rights under the laws of the State of New York.

92. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

93. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

94. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

FIFTH CAUSE OF ACTION

Malicious Prosecution

95. Plaintiff repeats and realleges paragraphs 1 through 94 as if fully set forth herein.

96. The acts and conduct of the defendants constitute malicious prosecution under the laws of the United States Constitution, State of New York and New York State common law.

97. Defendants commenced and continued a criminal proceeding against plaintiff.

98. There was actual malice and an absence of probable cause for the criminal proceeding against plaintiff and for each of the charges for which he was prosecuted.

99. The prosecution and criminal proceedings terminated in plaintiff's favor on the aforementioned dates.

100. Plaintiff was subjected to a post-arraignment deprivation of liberty sufficient to implicate plaintiff's Fourth Amendment rights.

101. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

102. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

SIXTH CAUSE OF ACTION

Unlawful Strip Search

103. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 102 with the same force and effect as if more fully set forth at length herein.

104. Defendants forced plaintiff to endure a humiliating and intrusive and unlawful strip search in the bathroom of her own home without an individualized reasonable suspicion that plaintiff was concealing illegal drugs, weapons or other contraband based upon the particular characteristics of the arrestee, and/or the circumstances of the arrest of plaintiff.

105. As a direct and proximate result of such acts, defendants deprived plaintiff of her rights under the laws of the State of New York.

106. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

107. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

108. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

SEVENTH CAUSE OF ACTION

Denial of Right to Fair Trial

109. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs numbered 1 through 108 with the same force and effect as if fully set forth herein.

110. Defendants, individually and collectively, manufactured and/or withheld false evidence and forwarded this false evidence to prosecutors in the Kings County District Attorney's Office.

111. Defendants filled out false and misleading police reports and forwarded them to prosecutors in the Kings County District Attorney's Office.

112. Defendants signed a false and misleading criminal summons and forwarded it to prosecutors in the Kings County District Attorney's Office.

113. In withholding/creating false evidence against plaintiff, and in providing/withholding information with respect thereto, defendants violated plaintiff's constitutional right to a fair trial under the New York State Constitution and under the Due Process Clause of the Fifth and Fourteenth Amendments of the United States Constitution.

114. As a result of the foregoing, plaintiff, sustained, inter alia, loss of liberty, emotional distress, embarrassment and humiliation and deprivation of his constitutional rights.

115. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

116. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

117. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

EIGHTH CAUSE OF ACTION

Negligence

118. The plaintiff repeats reiterates and realleges each and every allegation contained in paragraphs marked 1 through 117 with the same force and effect as if more fully set forth at length herein.

119. Defendants owed a duty of care to plaintiff.

120. To the extent defendants claim that they accidentally entered the wrong apartment then defendants breached that duty of care by causing plaintiff to suffer physical injuries as a result of defendants careless, reckless, negligent, and/or accidental behavior.

121. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York.

122. All of the foregoing occurred without any fault or provocation by plaintiff.

123. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

124. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

125. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

SEVENTH CAUSE OF ACTION

Negligent Infliction of Emotional Distress

126. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 125 with the same force and effect as if more fully set forth at length herein.

127. By unlawfully entering plaintiff's apartment screaming profanities at plaintiff and pointing their guns at plaintiff for absolutely no legal reason, unlawfully strip searching plaintiff in her own apartment, and then fabricating allegations against plaintiff to justify why defendants arrested him, defendants, each acting individually and in concert with each other, engaged in extreme and outrageous conduct, conduct utterly intolerable in a civilized community, which negligently caused severe emotional distress to plaintiff. The acts and conduct of the defendants were the direct and proximate cause of damage to plaintiff and violated plaintiff's statutory and common law rights as guaranteed plaintiff by the laws and Constitution of the State of New York.

128. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York.

129. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

130. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

131. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

EIGHTH CAUSE OF ACTION

Intentional Infliction of Emotional Distress

132. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 131 with the same force and effect as if more fully set forth at length herein.

133. The above-described conduct by unlawfully entering plaintiff's cousins' apartment and pointing their guns at plaintiff for absolutely no legal reason and then fabricating allegations against plaintiff to justify why defendants arrested him, defendants, each acting individually and in concert with each other, defendants' conduct was outrageous, atrocious so extreme in degree to go beyond all possible bounds of decency, and utterly intolerable in a civilized community.

134. Defendants' conduct was intentional, wanton and reckless and was done with a total disregard of the risks to plaintiff's health and safety.

135. As a direct and proximate result of the acts alleged above, plaintiff suffered severe emotional distress, humiliation, mental anguish, and physical distress.

136. The acts of defendants alleged above were willful, wanton, flagrant, malicious, oppressive, and performed with a total disregard for plaintiff's health safety and welfare and justify the award of punitive damages.

137. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York.

138. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

139. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

140. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

NINTH CAUSE OF ACTION

Failure to Intervene

141. The plaintiff repeats reiterates and realleges each and every allegation contained in paragraphs marked 1 through 140 with the same force and effect as if more fully set forth at length herein.

142. Defendants had an affirmative duty to intervene on behalf of plaintiff, whose constitutional rights were being violated in their presence by other officers.

143. Defendants failed to intervene to prevent the unlawful conduct described herein.

144. As a result of the foregoing, plaintiff's liberty was restricted for an extended period of time, he was put in fear of his safety, and he was humiliated and subject to other physical constraints.

145. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

146. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

TENTH CAUSE OF ACTION

Negligent Hiring, Retention, Training and Supervision

147. The plaintiff repeats reiterates and realleges each and every allegation contained in paragraphs marked 1 through 146 with the same force and effect as if more fully set forth at length herein.

148. The City of New York and its employees, servants and/or agents acting within the scope of their employment did negligently hire, retain, train and supervise defendants, individuals who were unfit for the performance of police duties on the aforementioned dates at the aforementioned locations.

JURY DEMAND

149. Plaintiff hereby demands trial by jury of all issues properly triable thereby.

PRAYER FOR RELIEF

WHEREFORE, plaintiff Natasha Mckoy demands judgment against the defendants on each cause of action in amounts to be determined upon the trial of this action which exceeds the jurisdiction of lower courts, inclusive of punitive damages and attorneys' fees inclusive of costs and disbursements of this action, interest and such other relief as is appropriate under the law. That the plaintiff recover the cost of the suit herein, including reasonable attorney's fees pursuant to 42 U.S.C. § 1988.

Dated: New York, New York
October 27, 2019

By: /s/
DAVID M. HAZAN
JACOBS & HAZAN, LLP
Attorneys for Plaintiff
30 Vesey Street, 4th Floor
New York, NY 10007
(212) 577-2690

ATTORNEY'S VERIFICATION

DAVID M. HAZAN, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am a partner of the law firm of **JACOBS & HAZAN, LLP**, I have read the annexed **VERIFIED COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files. The reason this verification is made by me and not Plaintiff is because plaintiff does not reside in the county wherein I maintain my office.

DATED: New York, New York
October 27, 2019

_____/s/
DAVID M. HAZAN